

9:01 1	19CV341095	<i>Sandy Park</i> <i>v.</i> <i>Nancy Kim, et al.</i>	Hearing on Judgment-Debtor Sandy Park’s New Claim of Exemption On April 9, 2026, Judgment-Debtor Sandy Park (“Park”) filed a Claim of Exemption concerning levied rental income and cited C.C.P. § 473(b) as the basis for her exemption claim. After a hearing on May 15, 2026 on this issue, the Court DENIED Park’s exemption claim for several reasons: (1) Section 473(b) is not an exemption statute, (2) Park failed to identify any applicable statutory basis exempting the levied funds from enforcement, and (3) Park failed to carry her burden to establish that the levied funds are exempt. Order at 2:5-12 (filed: June 2, 2026). Next, on July 16, 2026, Parked filed a new Claim of Exemption objecting to the levied rental income, now citing C.C.P. §§ 473(b), 687.040, and 703.610 (the “New Claim of Exemption”). This Court has already ruled that Section 473(b) is not an exemption statute. The same holds true for Sections 687.040 and 703.610. Section 687.040 is about levying officer liability and Section 703.610 concerns the levying officer’s handling of property after a claim of exemption is made. None of these statutes exempts rental income from enforcement. And Park’s arguments about disputed accounting and allegations of fraud do not make the levied rent exempt. Moreover, under Code of Civil Procedure Section 703.530, Park as the Judgment Debtor has the burden to establish that the levied funds are exempt, e.g., by demonstrating that the funds at issue are reasonably necessary for her support. But Park has failed to carry that burden.
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			Accordingly, Judgment Debtor Sandy Park's New Claim of Exemption is DENIED. Judgment Creditor Nancy Kim is to prepare and file the formal order after this hearing. SO ORDERED.
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9:00 <u>1</u>	25CV477825	<i>American Express National Bank</i> <i>v.</i> <i>Christophe Juniel a.k.a. Christopher Juniel, et al.</i>	Order on Defendant Christopher Juniel's Motion to Quash Service of Summons See Line 1 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order & Judgment.
9:00 <u>2</u>	22CV402044	<i>Park Capital Management, LLC</i> <i>v.</i> <i>Satya Chillara, et al.</i>	Order on Plaintiff's Motion for Summary Judgment See Line 2 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.

9:00 3	23CV411306	<i>Raymond Tesconi</i> <i>v.</i> <i>Dark Run Ventures, Inc., et al.</i>	Order on Defendant Tripathi's Motion to Expunge Lis Pendens See Line 3 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
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